

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 02/26/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02520
CASE NAME: ETIENNE VS. RICHMOND AMERICAN HOMES OF CALIFORNIA, INC.
*HEARING ON MOTION IN RE: VACATE DISMISSAL
FILED BY:
TENTATIVE RULING:

The July 23, 2025 dismissal is set aside for the reasons stated in the January 22, 2026 order. Defendants request for attorney fees is granted in part. Plaintiffs' counsel is ordered to pay Defendants \$2,014.00 within 30 days of this order.

Background

This is a construction defect action filed in 2022 by multiple homeowner plaintiffs against Richmond American Homes of California, Inc. and related entities. The case proceeded through 2024 and 2025 with the court setting a series of case management conferences (CMCs) and issuing orders concerning plaintiffs' appearances and prosecution of the action. Plaintiffs' counsel appeared at certain CMCs, at which subsequent hearing dates were set. During this period, the Court issued multiple notices and orders relating to CMCs and an Order to Show Cause (OSC) regarding dismissal for failure to prosecute.

Plaintiffs did not file CMC statements or appear at several subsequent hearings. On July 23, 2025, the court held an OSC re: dismissal for failure to appear at the CMC and failure to prosecute. Plaintiffs did not appear at that hearing. The court dismissed the action without prejudice on July 23, 2025 for Plaintiffs' "failure to appear and prosecute the case."

On August 14, 2025, Plaintiffs filed a motion to set aside the dismissal of this action pursuant to the mandatory and discretionary relief provisions of CCP section 473(b). The motion was accompanied by a declaration from plaintiffs' counsel, Saba Sheida, in which counsel admits that the dismissal was caused by his mistakes, inadvertence, and neglect.

On January 22, 2026, the Court granted mandatory relief under CCP section 473(b). The tentative ruling allowed Defendants to contest the tentative ruling to request the opportunity to submit a fee declaration, and they did so. The parties are now back before the Court on the fee request.

Attorney's Fees Under CCP § 473(b)

Where relief is granted under the mandatory provision of CCP section 473(b), the Court must order the offending attorney to pay reasonable compensatory attorney's fees and costs to the opposing party. Because relief is granted in this case based on an affidavit of attorney fault, Plaintiffs' counsel must reimburse these amounts.

Defendants submit the declaration of counsel Kevin J. Gillispie seeking \$2,544 in compensatory attorney's fees under CCP section 473(b) (9.6 hours at \$265/hour). Defendants' counsel identifies time spent preparing for and appearing at hearings at which Plaintiffs' counsel failed to appear (8/30/24 (1.1 hrs.), 10/24/24 (.9 hrs), 6/23/25 (1.6 hrs.), 7/23/25 (1.6 hrs.)), meet and confer communications following the dismissal (.7 hrs.), and preparing the opposition and appearing at the hearing on this motion (1/22/26 (2.3 hrs). (See Gillispie Decl. ¶¶ 5–10.)

Plaintiffs' counsel argues Defendants' fees are not "compensatory" because case management conferences would have occurred regardless, and because Defendants could have avoided motion practice by stipulating to relief. The Court disagrees. Although some default set aside cases reduce or deny fees incurred opposing relief where a stipulation could have avoided unnecessary motion practice, that rationale does not apply because the dismissal was entered by Court order, and could not have been vacated by stipulation of the parties. Because defense counsel was required to prepare for and attend the noticed CMC and OSC hearings, and Plaintiffs' counsel's nonappearance rendered those appearances wasted and set in motion the dismissal that required this motion, the time is a reasonable compensatory expense caused by counsel's errors.

Nevertheless, the Court awards only reasonable compensatory fees incurred. The Court limits recovery for each missed hearing to a maximum of one hour and where counsel claims less than one hour for a hearing, the Court awards only the time actually claimed. The Court also awards the .7 hours of meet and confer time claimed. Finally, the Court awards a total of 3 hours for counsel's work opposing the 473 motion and attending the hearing. The total awarded time is 7.6 hours at \$265 per hour, for a compensatory fee award of \$2,014.00.

Disposition

The July 23, 2025 dismissal is set aside for the reasons stated in the January 22, 2026 order. Defendants request for attorney fees is granted in part. Plaintiffs' counsel is ordered to pay Defendants \$2,014.00 within 30 days of this order.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
MOTION TO STRIKE PRAYER FROM 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is Defendants Nelson Pools, Inc. and Bryant Harris' Motion to Strike Prayer from Second Amended Complaint. Defendants move to strike the request for "statutory damages, including treble damages where allowed," from the Prayer.

For the following reasons, Defendants' Motion is **granted** as outlined below.

Factual and Procedural Background

In June 2020, Plaintiffs entered into a contract with Defendant Nelson Pools, Inc. for construction of a swimming pool, hot tub, and concrete decking at Plaintiffs' residential property. Plaintiffs allege numerous problems with the design and performance of the work by Defendants.

Plaintiffs filed their initial Complaint on December 2, 2022. That Complaint alleged eight causes of action: (1) slander of title; (2) breach of contract; (3) negligence; (4) unfair business practices (Bus. & Prof. Code § 17200 et seq.); (5) strict liability – design defect; (6) fraud in the inducement; (7) intentional infliction of emotional distress; and (8) negligent infliction of emotional distress.

A First Amended Complaint was filed on April 25, 2023, removing several causes of action. The operative Second Amended Complaint was filed on May 19, 2025. The SAC alleges four causes of action: (1) breach of contract; (2) negligence; (3) strict liability – design defect; and (4) fraud. Among other relief, the SAC requests and award of "statutory damages, including treble damages where allowed". (Prayer at B.)

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. ("CCP") § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it

deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

Analysis

As noted by Defendants, the SAC does not identify any statute that either Defendant is alleged to have violated. As outlined above, the SAC contains four causes of action – each of which is based on a violation of the common law. There are no statutory claims.

Plaintiffs make several arguments in opposition. First, they note that the original complaint “incorporated by reference into the SAC” contains a cause of action under the UCL – Business and Professions Code section 17200 et seq. Plaintiffs fail to indicate where in the SAC this reference is. The Court’s review of the SAC fails to find any reference to the original complaint being ‘incorporated by reference.’

Even if it were, an “‘amended’ complaint supersedes all prior complaints. . . . The original ceases to ‘perform any function as a pleading.’ [Citation omitted.]” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 [quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131.) As such, the original complaint cannot form the basis for relief in the SAC.

Likewise, the arguments regarding the unlawful mechanics’ lien are without merit. Plaintiffs argue that the allegations regarding Defendants obtaining a mechanics’ lien “forms the factual basis for the cause of action for Slander of Title and serves as a prime example of the ‘unlawful business act’ targeted by the UCL.” Again, the SAC does not contain a cause of action for Slander of Title – nor for a UCL violation.

Even if the UCL were alleged, in a private action under that law “the remedies are ‘generally limited to injunctive relief and restitution.’” (*Clark v. Superior Court* (2010) 50 Cal.4th 605, 610.) “When the action is brought by public prosecutors, the recovery may also include a civil penalty of up to \$ 2,500 for each violation.” (*Ibid.*) “**Not recoverable are damages**, including punitive damages and increased or enhanced damages.” (*Ibid.* emphasis added.) As such, even a UCL claim would not support a prayer for statutory damages.

Plaintiffs’ arguments related to the fraud claim and request for exemplary damages also fail to address the request for statutory damages – which is a separate category of requested damages. The Prayer includes a request for ‘exemplary damages according to proof,’ is available as Plaintiffs have a fraud cause of action. (The Court notes that the demurrer to the fraud cause of action was sustained with leave to amend as to Defendant Harris – see line 1.) The common law fraud cause of action, however, does not support a claim for “statutory damages.”

The SAC does not contain any claims for statutory violations that would support a request for

statutory damages. Without a statutory cause of action, such damages are unavailable.

Conclusion

Based on the above, Defendants' motion to strike is **granted**.

3. 9:00 AM CASE NUMBER: C22-02577

CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS

***HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT.**

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Bryant Harris' Demurrer to Second Amended Complaint.

Factual Allegations and Procedural Background

In June 2020, Plaintiffs entered into a contract with Defendant Nelson Pools, Inc. for construction of a swimming pool, hot tub, and concrete decking at Plaintiffs' residential property. Plaintiffs allege numerous problems with the design and performance of the work by Defendants.

Relevant to the current proceeding, Defendant Bryant Harris is alleged to have "owned, managed, and/or acted in a supervisory capacity" for Defendant Nelson Pools. (¶ 9.) He is also alleged to have had several discussions with Plaintiffs during and after the construction project, and to have designed at least part of the project. (e.g. ¶¶ 14-15, 18-19.)

Plaintiffs filed their initial complaint on December 2, 2022. The operative Second Amended Complaint was filed on May 19, 2025. The SAC alleges four causes of action: (1) breach of contract; (2) negligence; (3) strict liability – design defect; and (4) fraud. Only the second (negligence) and fourth (fraud) causes of action are asserted against moving Defendant Harris.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A

demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Timeliness of Opposition

Plaintiffs acknowledge that their opposition papers were filed beyond the statutory deadline. They note that this was due to exigent circumstances beyond their control related to the health of one of the Plaintiffs. The Court has discretion to accept late filed papers. (Cal. R. Ct. 3.1300 (d).) While the opposition papers were late, Defendant Harris filed a substantive Reply in a timely manner. As such, the Court will accept the late filed opposition papers. Plaintiffs are reminded to strictly abide by any applicable deadlines going forward.

Negligence

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care towards the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

Defendant Harris contends via his demurrer that the SAC fails to properly allege he had a legal duty of care toward Plaintiffs. He argues that plaintiffs’ negligence cause of action is predicated solely on a duty created by the contract. The SAC, however, goes beyond just the contract. As the demurrer notes, the “SAC expressly alleges that the contractor owed a duty to plaintiffs,” citing pages 9, lines 15-21. The SAC states, in relevant part, at that location:

As contractors, Defendants owed Plaintiffs a duty of care which encompassed the project being completed and left in a finished state that was reasonable and safe for use, both pursuant to the terms of the contract **and as proscribed by common law.** (emphasis added.)

The SAC goes on to allege that the “Defendants who designed, managed, and performed the construction at Plaintiff’s residence owed Plaintiffs, as their customers/clients, the duty to provide a finished product that was safe for use by Plaintiffs and their family and guests.” (¶ 38.) It is also alleged that Defendant Harris “designed the defective step/hot tub.” (¶ 18.)

When reading a complaint in response to a demurrer, the Court must “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Blank*, supra, 39 Cal.3d 311 at 318.) In addition, the allegations in the complaint must be construed “liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.)

Defendant also appears to argue that the negligence cause of action is barred by the economic loss rule, contending that “a person does not have a duty to guard against ‘purely economic loss.’” (Demurrer at 3:13-15 citing *Southern California Gas Leak Cases* (2019) 7 Cal.5th 391, 398.) No real analysis of this legal theory is provided. As noted by Plaintiffs, the SAC specifically alleges physical injury. (See e.g. ¶ 15, 17 g, 25, 35, 37.)

Based on the above, Defendant’s demurrer to the negligence cause of action is **overruled**.

Fraud

“The elements of fraud are: ‘(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, *i.e.*, to induce reliance, (d) justifiable reliance, and (e) resulting damage.’” (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 184.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading *facts* which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (*Ibid.* quoting *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73 italics in original.) “A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater. In such case, the plaintiff must ‘allege the names of the person who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.’” (*Ibid.* quoting *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

Initially, the Court notes that there are several allegations wherein “Defendants” are alleged to have made certain statements and/or representations. (See e.g. ¶¶ 23, 55-57.) The SAC names four separate individual defendants: (1) Ryan W. Nelson; (2) Nicole Nelson; (3) Sean Adams; and (4) Bryant Harris. (¶¶ 3-6.) Accordingly, it is impossible to tell what individual is alleged to have made any of these statements. Without specific attribution to Defendant Bryant Harris, they cannot support a fraud claim against him. Defendants Ryan Nelson, Nicole Nelson, and Sean Adams have been dismissed from the case.

As stated by Mr. Harris, there appear to be only two allegations regarding specific statements made by him: (1) that Harris stated that the handrails would be installed by Defendant Adams, (¶ 14) and that (2) Harris indicated that “someone would come to finish” the items pointed out by Plaintiffs (¶ 19.).

Regarding the first statement, there are no allegations that Mr. Harris knew this statement to be false when he made it. To support a fraud claim, there must be facts showing that the person speaking knew the statement to be false at the time the statement was made. (*Charnay*, *supra*, 145 Cal.App.4th at 184.) As to the second statement, the SAC goes on to state that when Plaintiffs attempted to discuss the outstanding items “Defendant Harris became angry and stated: ‘we’re not doing any more work at your house’ and stormed off.” (¶ 19.) This undercuts any claim that Plaintiffs ‘justifiably relied’ upon the representation that the outstanding items would be fixed. Instead, it shows that there was a large doubt as to whether Defendants would complete the project.

In addition, the law is well established that actionable misrepresentations must pertain to past or existing material facts. (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 835 [121 Cal.Rptr.2d 703].) Statements or predictions regarding future events are deemed to be mere opinions which are not actionable. (*Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells* (2000) 86 Cal.App.4th 303, 309–310; *Nibbi Brothers, Inc. v. Home Federal Sav. & Loan Assn.* (1988) 205 Cal.App.3d 1415, 1423; 5 Witkin, Summary of Cal. Law (10th ed. 2005) Torts, § 774, pp. 1123–1125.)” (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469-70.) Both above statements pertain to possible future events and not past existing material facts.

Based on the above, Defendant Harris' demurrer to the fraud cause of action is **sustained**.

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Defendant requests that the demurrer be sustained without leave to amend. Plaintiffs not only do not provide any explanation as to how they can amend the SAC to properly allege the fraud cause of action, they do not even request leave to amend. Despite this, "it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The SAC does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted. Plaintiffs are reminded of their burden going forward.

Conclusion

Defendant's Demurrer is **overruled** as to negligence cause of action and **sustained** as to the fraud cause of action. Plaintiffs are **granted leave to amend** as to the fraud cause of action. Plaintiffs shall file their amended complaint within 14 calendar days of entry of this Order.

4. 9:00 AM CASE NUMBER: C23-00932
CASE NAME: HONESTII LUMSEY VS. ANTIOCH EDEN RIVERTOWN, L.P.
***HEARING ON MINOR'S COMPROMISE RE: HONESTII AMARA LUMSEY**
FILED BY: LUMSEY, HONESTII AMARA

TENTATIVE RULING:

Hearing required.

The Court is concerned that the fee percentage of 40% is not consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). Counsel are given the option of either accepting a reduction of the fee to \$30,000 (30% of the recovery) or continuing the matter and submitting a supplemental brief addressing compliance with the CRC factors. (The Court is aware that the proposed 40% is a reduction from 50% called for by the retainer agreement.) Counsel may appear to address the issue.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Guardian ad Litem is required (by zoom is acceptable), in order to assure that she understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.

5. 9:00 AM CASE NUMBER: C24-00117

CASE NAME: MARQUITA FIGURES VS. QINKE "KIKI" LI

***HEARING ON MINOR'S COMPROMISE RE: J. FIGURES**

FILED BY: FIGURES, MARQUITA LYNNETTE

TENTATIVE RULING:

Hearing required.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Parent is required (by zoom is acceptable), in order to assure that she understands that the funds paid to her are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18.

6. 9:00 AM CASE NUMBER: C24-00117

CASE NAME: MARQUITA FIGURES VS. QINKE "KIKI" LI

***HEARING ON MINOR'S COMPROMISE RE: JAM. HALL FIGURES**

FILED BY: FIGURES, MARQUITA LYNNETTE

TENTATIVE RULING:

Hearing required.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Parent is required (by zoom is acceptable), in order to assure that she understands that the funds paid to her are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18.

7. 9:00 AM CASE NUMBER: C24-00117

CASE NAME: MARQUITA FIGURES VS. QINKE "KIKI" LI

***HEARING ON MINOR'S COMPROMISE RE: J. JACKSON BUDD**

FILED BY: FIGURES, MARQUITA LYNNETTE

TENTATIVE RULING:

Hearing required.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Parent is required (by zoom is acceptable), in order to assure that she understands that the funds paid to her are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18.

8. 9:00 AM CASE NUMBER: C24-03541

CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.

***HEARING ON MOTION IN RE: STAY DISCOVERY PENDING RULING ON MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**

FILED BY: AIRBNB, INC.

TENTATIVE RULING:

Off calendar, at the request of the parties.

9. 9:00 AM CASE NUMBER: C25-01590

CASE NAME: SOFIA LOPEZ VS. SALLY WALLY

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WALLY, SALLY

TENTATIVE RULING:

Background

Plaintiff Sofia Lopez sues defendants Richmond Chamber of Commerce, Sally Wally and Rich Doellstedt, asserting 14 different causes of action: (1) harassment in violation of FEHA; (2) Retaliation in violation of FEHA; (3) Failure to prevent workplace harassment; (4) failure to pay wages in violation of the FLSA; (6) defamation; (7) intentional infliction of emotional distress; (8) breach of implied covenant of good faith and fair dealing; (9) negligent hiring, supervision and retention; (10) constructive termination in violation of public policy; and (11) violation of California Labor Code §1102.5 (whistleblower retaliation). The complaint also initially was brought by James Lee, who also alleged causes of action for: (10) constructive termination in violation of public policy; (5) wrongful termination; (12) failure to pay overtime wages; (13) failure to provide accurate wage statements; and (14) failure to pay wages upon termination. Mr. Lee has been dismissed from the action, thus those claims are no longer before the Court.

Causes of action 1 through 4, 7, and 10 are alleged against all defendants. Cause of action six is alleged against Wally only. Cause of action 11 does not identify who it is alleged against. Causes of action 8 and 9 are alleged against defendant RCOC only.

Defendant Sarah Wally demurs to the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Tenth (moot by dismissal) and Eleventh causes of action of plaintiff's complaint, which are all of the causes of action alleged against her.

Counsel for Wally made a good faith effort to meet and confer about the demurrer, and while the parties communicated to some degree, plaintiff's counsel never substantively responded to the issues raised. Wally's counsel has complied with Code of Civil Procedure section 430.31 insofar as possible.

Discussion

First COA (harassment): As to Wally, the complaint alleges in general terms that Wally "routinely humiliated Ms. Lopez in the workplace verbally attacking her character, questioning her integrity, and disparaging her performance in front of colleagues." These allegations are not sufficiently specific to state a cause of action.

Second COA (retaliation): Wally contends that as a Board Member of RCOC, she was not the employer, and therefore could not be held liable for retaliation. The complaint alleges only that she was a member of the Executive Board of RCCC. This is insufficient, by itself, to state a cause of action against her for retaliation.

Third COA (failure to prevent harassment): Again, the simple allegation that Wally is a Board member, without more, is not sufficient.

Fourth COA (failure to pay wages): The simple allegation that Wally is an Executive Board member is not sufficient under Labor Code section 558.1.

Fifth COA (wrongful termination): The allegation that Wally is an Executive Board member is not sufficient.

Sixth COA (defamation): The allegation that Lally verbally attacked plaintiff's character, questioned her integrity, and disparaged her performance in front of colleagues is not sufficient to meet the requirements for pleading the five elements of defamation.

Seventh COA (Intentional Infliction of Emotional Distress): Plaintiff must allege "extreme and outrageous" conduct by Wally. The allegation that Lally "disparaged" and "humiliated" plaintiff is not sufficient.

Eleventh COA (whistleblower retaliation): Again, the simple allegation that Wally is a board member, without more, is not sufficient. (This cause of action did not even state who it is alleged against, so the Court infers that it is against all defendants.)

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Lally requests that the demurrer be sustained without leave to amend. Plaintiff, who has filed no opposition, therefore does not provide any explanation as to how she can amend the complaint. Despite this, "it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The complaint does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted.

Lally's demurrer is sustained, with leave to amend.

**10. 9:00 AM CASE NUMBER: C25-01590
CASE NAME: SOFIA LOPEZ VS. SALLY WALLY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND CHAMBER OF COMMERCE, INCORPORATED
*TENTATIVE RULING:***

Background

Plaintiff Sofia Lopez sues defendants Richmond Chamber of Commerce, Inc. (RCOC), Sarah Wally and Rich Doellstedt, asserting 14 different causes of action: (1) harassment in violation of FEHA; (2) Retaliation in violation of FEHA; (3) Failure to prevent workplace harassment; (4) failure to page

wages in violation of the FLSA; (6) defamation; (7) intentional infliction of emotional distress; (8) breach of implied covenant of good faith and fair dealing; (9) negligent hiring, supervision and retention; (10) constructive termination in violation of public policy; and (11) violation of California Labor Code §1102.5 (whistleblower retaliation). The complaint also initially was brought by James Lee, who also alleged causes of action (5) wrongful termination; (10) Constructive termination in violation of public policy; (12) failure to pay overtime wages; (13) failure to provide accurate wage statements; and (14) failure to pay wages upon termination. Mr. Lee has been dismissed from the action, thus those claims are no longer before the Court.

1 through 4, 7, and 10 are alleged against all defendants. Cause of action six is alleged against Wally only. Cause of action 11 does not identify who it is alleged against. Causes of action 8, and 9 are alleged against defendant RCOC only.

Defendant RCOC demurs to the First, Second, Third, Fifth (moot by dismissal), Seventh, Eighth, Tenth (moot by dismissal), and Eleventh causes of action of plaintiff's complaint, which are all of the causes of action alleged against it.

Counsel for RCOC made a good faith effort to meet and confer about the demurrer, and while the parties communicated to some degree, plaintiff's counsel never substantively responded to the issues raised. RCOC's counsel has complied with Code of Civil Procedure section 430.31 insofar as possible.

Discussion

First COA (harassment): The complaint alleges that Executive Board Member Wally, "routinely humiliated Ms. Lopez in the workplace verbally attacking her character, questioning her integrity, and disparaging her performance in front of colleagues." These allegations are not sufficiently specific to state a cause of action for workplace harassment.

Second COA (retaliation): RCOC contends that the elements of the FEHA violation required that plaintiff have engaged in protected activity, the employer subjected the employee to an adverse employment action, and a causal link exist between the two. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) The allegations are not sufficient.

Third COA (failure to prevent harassment): Having failed to allege harassment or retaliation in causes of action One and Two, there can be no cause of action for failing to prevent harassment or retaliation.

Seventh COA (Intentional Infliction of Emotional Distress): Plaintiff must allege "extreme and outrageous" conduct. Assuming for sake of discussion that Lally's conduct is attributable to RCOC, the allegation that Lally "disparaged" and "humiliated" plaintiff is not sufficient.

Eighth COA (breach of implied covenant of good faith and fair dealing): Plaintiff fails to identify any contract from which the implied covenant arises.

Ninth COA (Negligent hiring, supervision, and retention): Assuming for sake of discussion that an employee may sue their employer for the negligent supervision of another employee, the complaint

does not identify the employee in question (Wally is not alleged to be an employee) or identify any negligence by RCOC

Eleventh COA (whistleblower retaliation): Assuming that this cause of action applies to all defendants, the bare allegation that “plaintiff’s reported illegal conduct, and Defendants retaliated by taking adverse employment action” is not sufficient. The complaint must allege what illegal conduct she reported, and the action that was taken against her.

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Lally requests that the demurrer be sustained without leave to amend. Plaintiff, who has filed no opposition, therefore does not provide any explanation as to how she can amend the complaint. Despite this, “it has long been the rule that a trial court’s denial of leave to amend constitutes an abuse of discretion unless the complaint ‘shows on its face that it is incapable of amendment.’” (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The complaint does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted.

RCOC’s demurrer is sustained, with leave to amend.

11. 9:00 AM CASE NUMBER: C25-01794
CASE NAME: AFONSO INFANTE VS. BRIAN SKARBEK
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND QUASH SERVICE**
FILED BY: SKARBEK, BRIAN
TENTATIVE RULING:

Defendants Brian Skarbek, White Rose Process Service, Inc., Luciano Caro and Martin Garcia’s motion to set aside the default is granted. Further, Defendants’ motion to quash service is granted.

Plaintiff Afonso Infante sued the Defendants for various torts related to Defendants work in an unlawful detainer case filed against Plaintiff. Plaintiff filed his complaint on June 25, 2025. Plaintiff filed proofs of service, showing that the Defendants were served by personal service on June 27, 2025 at 100 Saratoga Avenue, Suite 200. (See Proofs of Service, filed 7/28/25.) Plaintiff obtained a default against the Defendants on August 5, 2025. Defendants file this motion to set aside the default on November 12, 2025.

Defendants bring this motion under Code of Civil Procedure sections 418.10 and 473.5.

Section 473.5(a) allows a party to file a motion to set aside a default “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action”. The motion must

be filed no later than “the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc. § 473.5(a).)

Section 418.10 allows a defendant to file a motion “[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10(a)(1).) A motion to set aside filed under section 473 or 473.5 may be filed with a motion to quash service of summons as was done in this case.

The Court may grant a motion to set aside under section 473.5 where it finds that “the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect”. (Code Civ. Proc. § 473.5(c); see *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) “ ‘[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute [to establish personal jurisdiction] is void.’ [Citation.]” (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1227.) Where the evidence shows that there is a false proof of service of the summons, that may constitute both extrinsic fraud and mistake, which gives the court inherent power to set aside the default. (*Id.* at 1229.) Finally, “[u]nder section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citation.]” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

Here, Defendants present evidence that the service on June 27, 2025 at 100 Saratoga Avenue, Suite 200 did not occur. They provide declarations from the two employees who were working at the front desk that day and both state that no one came in to serve papers. (Jalalian Dec. ¶¶3-5; Su’a Dec. ¶¶3-5.) The individual defendants also state that they were not in the office at that day and time, and have not been served with the summons in this case. (Skarbeck Dec. ¶¶2-4; Caro Dec. ¶¶3-4; Garcia Dec. ¶¶3-4; White Dec. ¶¶4-5.) Finally, Defendants provide a declaration from the process server listed on the proofs of service, Donald Schlipp, and he states that he did not sign those proofs of service and has no record of serving the defendants in this case. (Schlipp dec. ¶¶5-7.)

Plaintiff opposes this motion, stating that he hired Schlipp and received the proofs of service that he filed. Plaintiff insists that he hired Schlipp and did not forge the proofs of service. (Infante dec.) Plaintiff acknowledges that he was not at 100 Saratoga Avenue on June 27 and thus, he lacks personal knowledge regarding what occurred at 100 Saratoga Avenue on June 27.

The default here was taken based upon proofs of service that were signed by Donald Schlipp. Schlipp has now provided the Court with a declaration refuting those proofs of service, that alone is grounds to grant this motion and quash service. Plaintiff’s declaration contesting Schlipp’s declaration does not change the outcome here because the proofs of service are based upon Schlipp’s statements regarding service and Schlipp now states that he never served the Defendants in this case.

Further, even if the Court accepted the proofs of service. Service by a registered process server provides a presumption of service (Evidence Code section 647) and here, Defendants have presented sufficient evidence to rebut that presumption. Thus, even if the Court accepts the proofs of service, there are still grounds to grant this motion and quash service.

Defendants' request to present oral testimony at the hearing is denied as unnecessary.

Finally, the Court notes that there is a serious conflict between the proofs of service showing that Schlipp served the defendants, which Plaintiff claims he received from Schlipp, and Schlipp's declaration stating that he did not sign those documents and did not give them to Plaintiff. The Court need not resolve this conflict to decide this motion because whether or not Plaintiff or Schlipp is incorrect in their statement of what occurred, the current evidence before the Court is that Defendants were not served in this case.

12. 9:00 AM CASE NUMBER: C25-01983
CASE NAME: KURT VOSS VS. GREGORY GOMES
***MOTION/PETITION TO COMPEL ARBITRATION MOVED FROM C24-02149**
FILED BY: GOMES, GREGORY
TENTATIVE RULING:

Defendant, Gregory Gomes, moves the Court under the California Arbitration Act ("CAA") to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. Because Gomes has established an enforceable arbitration agreement exists that would cover the dispute here, the motion is **granted**. Parties shall submit the dispute to arbitration and the case is stayed pending the outcome.

A status conference is set for 8:30 a.m. on August 26, 2026, to update the Court regarding the arbitration proceedings.

I. Background

Plaintiffs, Kurt Voss and Cathy Huang, allege that their properties (160 Valley Hill Drive and 210 Valley Hill Drive in Moraga, California, respectively) are in a remote area not served by any water district requiring them to rely on the Valley Hill Water System. The Valley Hill Water System, a private system of wells, springs, storage tanks, and water lines provides potable and emergency water to their properties and the properties of certain neighbors.

Plaintiffs enumerate various components relevant to their allegations, including (1) the Turre/Mitchell Bore, (2) the Turre Spring, (3) the Turre Well, (4) two Community Tanks, (5) pipelines connecting various other components, and (6) the Common Line, which connects the Community Tanks to a parcel owned by the Chimnis (nonparties).

Plaintiffs filed this action on July 9, 2025, alleging that defendant Gomes, on whose property various of the above system components are located, has repeatedly damaged the system and prevented plaintiffs from performing necessary repairs. Plaintiffs allege eleven causes of action: (1) Breach of Express Easements; (2) Equitable Easement; (3) Breach of Contract; (4) Negligence; (5) Nuisance; (6) Trespass; (7) Trespass to Chattels; (8) Violation of Civil Code, § 845; (9) Violation of Cal. Const., Art. X, § 2, and Water Code, § 100; (10) Permanent Injunction; and (11) Declaratory Relief. Plaintiffs obtained a preliminary injunction enjoining Gomes from diverting water, obstructing easements, damaging the system, etc.

In response, defendant filed this motion to compel arbitration. The motion invokes the arbitration provision found in paragraph 17 of the Water Rights Agreement, which is attached to the complaint.

Plaintiffs oppose the motion, arguing the 1999 Water Rights Agreement does not govern because their claims do not “arise out of,” and are not otherwise “in connection” with the Water Rights Agreement because the claims do not concern the Turre Well or a replacement well. Plaintiffs argue they have not used the Turre Well in over ten years. They highlight the language in the 1999 agreement which specifically refers to the Turre Well and to “replacement wells.”

II. Evidentiary Matters

Defendant requests judicial notice of the complaint. The request is **granted**.

III. Standard

Code of Civil Procedure section 1281.2, first paragraph, requires the superior court to order arbitration of a controversy if it determines that an agreement to arbitrate “the controversy” exists. The threshold questions thus presented by every motion to compel arbitration are (1) whether an agreement to arbitrate exists and (2) and, if so, whether the parties' dispute falls within the scope of that agreement. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 686-687, citing *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the dispute. (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 185, citation omitted.)

While California has a strong public policy in favor of arbitration, which has resulted in the general rule that arbitration should be upheld “unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute,” this policy does not override ordinary principles of contract interpretation. (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 185.)

The contractual terms themselves must be carefully examined before the parties to the contract can be ordered to arbitration and “[t]he court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (*Id.* at 185, citations omitted.) “[T]he terms of the specific arbitration clause under consideration must reasonably cover the dispute as to which arbitration is requested.” (*Ibid.*)

In making this determination, the ordinary rules of contract interpretation apply. (*Rice, supra*, 248 Cal.App.4th at 185, citations omitted.) “The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made (Civ. Code, §§ 1636, 1644, 1647).” (*Rice, supra*, 248 Cal.App.4th at 185-186, citations omitted.) The whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other. (*Id.* at 186, citing Civ. Code, § 1641.) A court must view the language in light of the instrument as a whole and not use a “disjointed, single-paragraph, strict construction approach.” (*Id.* at 186, citations omitted.) An interpretation that leaves part of a contract as surplusage is to be avoided. (*Ibid.*)

The decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is “broad” or “narrow.” (*Ahern, supra*, 74 Cal.App.5th at 689; *Rice, supra*, 248 Cal.App.4th at 185-187.) A broad clause includes language that requires arbitration of “any claim arising from or related to” the agreement, while a narrow clause typically includes language that requires arbitration of “a claim, dispute, or controversy” that “arises from” or “out of” an agreement.” (*Ahern, supra*, 74 Cal.App.5th at 689-690; see also *Rice, supra*, 248

Cal.App.4th at 185-187.) Narrow clauses are interpreted to be more limited in scope and generally exclude language such as “relating to this agreement” or “in connection with this agreement.” (*Ibid.*)

IV. Analysis

Both sides here appear to agree that their predecessors were the ones to enter into the Water Rights Agreement, which requires arbitration of certain claims. Both sides further appear to agree that they, as the successors in interest, are bound by those terms.

In its recitals, the Water Rights Agreement identifies its purpose “to amend, modify and further define the rights and obligations of all parties with respect to the taking and use of water from Parcel One [Gomes’ parcel].” This purpose is broad and, along with paragraph three of the agreed terms, indicates parties contemplated new obligations (such as arbitration) as part of the agreement.

After setting forth the recitals, the Water Rights Agreement states in paragraph three that the rights described in the Water Rights Agreement take precedence “over any prior agreements.”

The Water Rights Agreement, at paragraph 17, provides for arbitration of all disputes “arising out of the terms” or “in connection therewith.” It states:

In the event of any dispute between the parties arising out of the terms of this agreement, or in connection therewith, the parties agree that any such dispute shall be settled through mutual, binding arbitration and not by court action.

The above arbitration clause is straightforward and broad.

It has been said that “[e]very court that has construed the phrase ‘arising in connection with’ in an arbitration clause has interpreted that language broadly” such that the language reaches every dispute between the parties “having a significant relationship to the contract and all disputes having their origin or genesis in the contract.” (*Rice, supra*, 248 Cal.App.4th at 186, citation omitted.) “To require arbitration, [the] factual allegations need only ‘touch matters’ covered by the contract containing the arbitration clause and all doubts are to be resolved in favor of arbitrability.” (*Ibid.*)

In their opposition, plaintiffs cite *Smythe v. Uber Technologies, Inc.* (2018) 24 Cal.App.5th 327, 333-334 for the principle that even broad arbitration clauses require a “significant relationship” between the dispute and the contract containing the arbitration clause. *Smythe* did not construe the phrase “in connection with.” Even if it had, the relationship here is “significant.”

Plaintiffs have admitted the Turre Well is an important component of their water system. Accordingly, while they contend “this lawsuit raises no claims against Gomes relating, in any way, to the Turre Well,” the requirement is simply that the claims are “in connection with” the Water Rights Agreement. Plaintiffs themselves attach the Water Rights Agreement to their complaint. Further, they admit the Turre Well is an “important component” of the water system. (See Complaint, ¶18.) It would be difficult to construe the present lawsuit as not arising “in connection” with the Water Rights Agreement.

While the Turre Well itself may not have been turned on for over a decade, the contractual language, which is a matter of public record, does not hinge on whether or not certain components are used regularly or not. That the agreement pertains to “replacement wells” in addition to the Turre Well suggests that the agreement is not contingent on use.

This case presents a rather close question in terms of scope of the arbitration clause and whether the claims here are covered. However, since the party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the

dispute, the Court concludes arbitration is required.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION FOR PRO HAC VICE AS TO TIM GRAY, ESQ.
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Granted.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL [FOR PLAINTIFF PATRICIA VALERI STANGL]
FILED BY: PARAQUAT CASES
TENTATIVE RULING:

The motion is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

15. 9:00 AM CASE NUMBER: N25-2444
CASE NAME: PETITION OF: MAUREEN MCCOOEY
HEARING IN RE: PETITION FOR RELEASE OF MECHANICS LIEN
FILED BY:
TENTATIVE RULING:

Petitioner has properly served the petition and notice of hearing. There is no opposition. **The petition is granted.**